PROJECT RIHAAI

Freedom Beyond Bail

Concept Note

An initiative of TYCIA Foundation

Supporting individuals who remain in custody after bail has been granted because they are unable to meet financial or surety-related requirements.

For Institutional / Prison Administration Consideration

1. Executive Summary

Project Rihaai is a social justice and rehabilitation initiative of TYCIA Foundation that seeks to address a practical gap that can arise even after a court has granted bail: an individual may remain in custody because the person or family is unable to arrange the required bail bond, surety, or related financial and documentation requirements.

The project focuses on supporting eligible individuals and their families through a structured, need-based process. Subject to verification, institutional permissions and the terms of the relevant court order, Rihaai may facilitate financial assistance toward bail-related requirements and limited documentation or travel expenses. The project also aims to support post-release reintegration through counselling, family follow-up and livelihood or employment linkages.

The central principle of Rihaai is that release after a judicial order should not be unnecessarily delayed solely because a financially vulnerable family cannot meet the applicable financial or surety requirements. The project does not determine eligibility for bail and does not interfere with judicial, prison, police or legal processes.

2. Background and Context

TYCIA Foundation has been working since 2011 across prisons, schools, communities and other social-sector settings, with a focus on creating opportunities for safety, dignity, rehabilitation and a second chance.

Project Rihaai was initiated in November 2025 under TYCIA Foundation in response to cases where individuals had received bail but continued to remain in custody because the required bond, surety or related costs could not be arranged by their families. In such situations, the financial impact may extend beyond the individual in custody and can affect the family's income, housing, education, food security and ability to meet essential daily needs.

3. Problem Statement

For a financially vulnerable family, the period between the grant of bail and actual release can become a significant practical barrier. The principal challenges may include:

- Inability to arrange the financial amount required under the bail order.
- Difficulty in arranging an eligible surety or guarantor where one is required.
- Loss of household income when the detained person is a primary or significant earner.
- Accumulation of essential household expenses such as food, rent, education and healthcare.
- Additional costs related to documentation, travel and coordination required for release.
- Limited awareness or access to reliable support systems for navigating post-bail requirements.

4. Understanding the Target Situation

For the purpose of this project, the primary target group comprises undertrial prisoners who have been granted bail by a competent court but remain in custody because the required bail bond, surety or related financial requirements have not yet been fulfilled.

An undertrial is a person facing criminal proceedings whose trial has not been concluded. Project Rihaai does not make any determination regarding guilt or innocence. Its support is based on the existence of a valid bail order, the individual's circumstances, verification of documents and the project's eligibility criteria.

5. Project Goal and Objectives

Goal

To reduce financial barriers that prevent eligible individuals from accessing release after bail has been granted, while supporting safe family and community reintegration.

Specific Objectives

- Identify eligible individuals who have received bail but remain in custody due to financial or surety-related barriers.
- Provide need-based financial support toward verified bail-related requirements.
- Assist families with essential documentation and coordination related to release, where appropriate.
- Connect released individuals and families with counselling, livelihood and employment support where feasible.
- Promote a structured, transparent and documented support process in coordination with relevant authorities and service providers.
- Contribute to longer-term rehabilitation and reintegration by addressing immediate post-release vulnerabilities.

6. Target Beneficiaries

The project primarily supports financially vulnerable undertrial prisoners who satisfy the project's eligibility and verification requirements. Families may also receive limited support or referrals where the individual's detention has created immediate socio-economic hardship.

The project follows a need-based approach. Priority may take into consideration the date of the bail order, the financial condition of the family and the urgency of the case, subject to verification and available resources. Case selection is intended to follow a first-come, first-served approach among eligible and verified cases.

7. Indicative Eligibility and Verification Criteria

A case may be considered where:

- A valid bail order has been passed by the competent court.
- The individual remains in custody because the bail bond, surety or related financial requirements have not been fulfilled.
- The case and identity details can be verified through relevant documentation.
- The family or individual demonstrates financial inability to meet the verified requirement.
- The support proposed by Rihaai is consistent with the court order and applicable institutional procedures.

Indicative documents for verification include:

- Bail Order
- First Information Report (FIR)
- Charge Sheet, where available/required
- Identity and family/contact details

- Relevant documents relating to the bail bond/surety requirement
- Other documents required for case verification

8. Support Model

The project is designed around a structured case-support pathway. The exact nature and amount of assistance are determined case by case after verification and within available project resources.

Stage	Support Activity	Key Safeguard
1. Identification	Receive or identify potentially eligible cases through appropriate channels.	No support without case verification.
2. Documentation	Review bail order and other required documents.	Document-based verification.
3. Need Assessment	Assess financial hardship and the specific barrier to release.	Need-based decision-making.
4. Approval	Internal review and approval for eligible support.	Case records and accountability.
5. Disbursement	Facilitate verified payment toward the approved requirement.	Prefer traceable/bank-based transactions.
6. Release Follow-up	Coordinate limited post-release follow-up and family support.	Respect privacy and consent.
7. Reintegration	Counselling and livelihood/employment linkages where feasible.	Voluntary, dignity-centred support.

9. Financial Assistance Framework

The current project framework estimates support of up to ₹20,000 per beneficiary, subject to case-specific verification, the actual requirement, project resources and internal approval. The indicative framework is:

Component	Indicative Amount
Bail bond / surety-related support	**Up to ₹15,000**
Legal/documentation/travel-related support	**Up to ₹5,000**
Indicative total support per beneficiary	**Up to ₹20,000**

These amounts are indicative and are not an automatic entitlement. Assistance is subject to verification, approval, the terms of the relevant court order and the project's available funds.

10. Payment and Financial Accountability

- Payments are normally made through traceable bank transfers or other documented institutional channels.
- Where a family lacks access to a smartphone or banking facility, limited cash assistance may be considered only for verified travel or documentation expenses, subject to internal controls and documentation.
- The project maintains case-level records of approvals, disbursements and supporting documents.
- Funds are intended only for the approved purpose and verified beneficiary-related requirement.

11. Post-Release Rehabilitation and Reintegration

Release is treated as an important first step rather than the end of support. Where feasible, Rihaai may provide or facilitate:

- Post-release counselling and psychosocial support.
- Family follow-up and guidance.

- Linkages to employment, livelihood or skill-development opportunities.
- Support in navigating basic documentation and service linkages.
- Referral to appropriate legal, social or government services where required.

12. Coordination with Prison Administration and Other Stakeholders

Project Rihaai seeks to work through lawful, transparent and institutionally approved processes. Any prison visit, case identification, document access, communication with prisoners or family members, and release-related coordination will be undertaken only with the required permission of the competent authority and in accordance with applicable prison rules, court directions and institutional protocols.

The project does not seek to influence judicial decisions, interfere with prison administration, replace legal counsel, or provide any assurance regarding the outcome of a criminal case.

13. Safeguarding, Confidentiality and Ethical Principles

- Respect for the dignity and rights of every individual, irrespective of the allegations in the case.
- Confidential handling of personal, legal and family information.
- No discrimination on the basis of gender, socio-economic status, background or other non-relevant factors.
- Informed consent for the collection or use of personal information wherever applicable.
- No public disclosure of case details without appropriate consent and institutional/legal safeguards.
- Clear documentation of financial support and case decisions.
- Referral to appropriate professional or statutory services where a matter falls outside the project's scope.

14. Expected Outcomes

- Reduction in the number of eligible individuals who remain in custody solely because verified financial or surety barriers have not been met.
- Improved access to lawful release following the grant of bail.
- Reduced immediate financial stress on affected families.
- Improved post-release access to counselling, livelihood and community support.
- Stronger coordination between civil society support systems and relevant institutional stakeholders.
- Improved documentation and learning on financial barriers to post-bail release.

15. Scale and Long-Term Vision

The project is designed as a six-month support cycle with an initial operational target of supporting up to 30 eligible beneficiaries per cycle, subject to available resources and verified case requirements. The longer-term goal is to support at least 200 individuals and their families over three years.

The project aims to develop a sustainable model in which financial assistance is combined with case verification, family engagement, post-release counselling and livelihood linkages, thereby addressing both the immediate barrier to release and the longer-term challenges of reintegration.

16. Governance and Case Decision-Making

Project Rihaai maintains an internal case review and documentation process. Eligibility is assessed on the basis of available records, financial need, the relevant bail order and the project's criteria. Final approval for a case is subject to the authorised decision-making process of TYCIA Foundation.

17. Scope and Limitations

- Rihaai does not grant bail or determine whether bail should be granted.
- Rihaai does not replace advocates, legal aid services, courts, prison authorities or statutory agencies.
- Financial assistance is subject to verification, eligibility, internal approval and available resources.
- Support will not be provided for any purpose that is inconsistent with a court order or applicable law.
- Release and discharge remain subject to completion of all requirements prescribed by the competent authority.

18. Conclusion

Project Rihaai seeks to address a specific but significant gap in the justice and rehabilitation ecosystem: the gap between the grant of bail and actual release when financial or surety-related barriers prevent an eligible individual from completing the required process.

Through need-based financial assistance, structured case verification, family engagement and post-release rehabilitation support, Rihaai aims to contribute to a more humane and effective pathway from custody to community reintegration. The project welcomes appropriate coordination with prison authorities and other stakeholders, subject to all applicable rules, permissions and legal requirements.

19. Organisation and Contact

Organisation	TYCIA Foundation
Project	Project Rihaai – Freedom Beyond Bail
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Project Initiation	November 2025

"Systemic change starts with awareness."

20. Submitted For Consideration By

Name	
Designation	
Signature	
Date	